

STATE OF COLORADO

STATE BOARD OF LICENSED PROFESSIONAL COUNSELOR EXAMINERS

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December 22, 2003

EDITH M. GUTIERREZ, LPC

RE: Complaint Filed by Mary Connolly
Board Case #2004.000155(C)
Letter of Admonition

Dear Ms. Gutierrez:

At its meeting on November 21, 2003, the Colorado Board of Licensed Professional Counselor Examiners (Board) reviewed the available material concerning the complaint filed against you by Ms. Connolly. This is the first step in deciding whether to institute a formal proceeding for discipline.

After thorough review and discussion, the Board found probable cause to believe you violated CRS 12-43-222(1) (g), (h), (i), (m) and 12-43-218, and issued this Letter of Admonition in accordance with CRS 12-43-224(3)(d). Specifically, the Board determined:

- You overstepped the limits of your expertise by providing advice on legal aspects of this case.
- You treated family members as individuals AND treated the family as a whole at the same time.
- You did not receive releases from each client involved in your therapy sessions, thereby violating the confidentiality of those clients.

On the basis of the above findings, the Board hereby admonishes you for such practice and warns you that repetition of such practice may lead to imposition of more severe disciplinary action. The Board strongly encourages you to review and understand the Mental Health Practice Act requirements and obligations for the practice of psychotherapy in Colorado.

In accordance with CRS 12-43-224(3)(d), the Board advises you that you have the right to make a written request that the Board initiate formal disciplinary proceedings in order to adjudicate the conduct or acts upon which this letter is based. You must make your written request within twenty (20) days after receipt of this letter and address your request to Amos D. Martinez, Program Director, at the above letterhead address. If you make a timely request, the Board will deem this letter of admonition vacated and may proceed with disciplinary and/or injunctive proceedings in accordance with CRS 12-43-224(3)(d), and applicable rules.

If this letter is not vacated, it will become the final agency action in this matter.

Sincerely,

Jack Kleinhessel
Board Chair